No. 14-

IN THE

Supreme Court of the United States

ABIGAIL NOEL FISHER,
Petitioner,

UNIVERSITY OF TEXAS AT AUSTIN, et al.,
Respondents.

ON PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

PETITION FOR A WRIT OF CERTIORARI

WILLIAM S. CONSOVOY
THOMAS R. MCCARTHY
J. MICHAEL CONNOLLY
CONSOVOY MCCARTHY PLLC
3033 Wilson Boulevard
Suite 700
Arlington, VA 22201

PAUL M. TERRILL
THE TERRILL FIRM, P.C.
810 W. 10th Street
Austin, TX 78701

BERT W. REIN
Counsel of Record
CLAIRE J. EVANS
BRENDAN J. MORRISSEY
WILEY REIN LLP
1776 K STREET NW
WASHINGTON, DC 20006
719-7000
brein@wileyrein.com

Questions Presented

Whether the Fifth Circuit's re-endorsement of the University of Texas at Austin's use of racial preferences in undergraduate admissions decisions can be sustained under this Court's decisions interpreting the Equal Protection Clause of the Fourteenth Amendment, including *Fisher v. University of Texas at Austin*, 133 S. Ct. 2411 (2013).

Parties to the Proceeding and Rule 29.6 Statement

Petitioner in this case is Abigail Noel Fisher.

Respondents are the University of Texas at Austin; Pedro Reyes, Executive Vice Chancellor for Academic Affairs in His Official Capacity; Daniel H. Sharphorn, Vice Chancellor and General Counsel in His Official Capacity; William Powers, Jr., President of the University of Texas at Austin in His Official Capacity; Board of Regents of the University of Texas System; R. Steven Hicks, as Member of the Board of Regents in His Official Capacity; William Eugene Powell, as Member of the Board of Regents in His Official Capacity; Ernest Aliseda, as Member of the Board of Regents in His Official Capacity; Alex M. Cranberg, as Member of the Board of Regents in His Official Capacity; Brenda Pejovich, as Member of the Board of Regents in Her Official Capacity; Robert L. Stillwell, as Member of the Board of Regents in His Official Capacity; Wallace L. Hall, Jr., as Member of the Board of Regents in His Official Capacity; Paul L. Foster, as Chair of the Board of Regents in His Official Capacity; Jeffery D. Hildebrand, as Member of the Board of Regents in His Official Capacity; Susan Kearns, Interim Director of Admissions in Her Official Capacity; William H. McRaven, Chancellor of the University of Texas System in His Official Capacity.

Plaintiff-Appellant below Rachel Multer Michalewicz is being served as a respondent herein.

Table of Contents

Questions Presented.....i

Parties to the Proceeding and Rule 29.6 Statement..ii

Petition for a Writ of Certiorari.....1

Opinions Below.....2

Jurisdiction.....3

Constitutional Provision Involved.....3

Statement of the Case.....3

A. UT's Use Of Race In Admissions Decisions.....3

Reasons for Granting the Petition.....5

III. Review Is Essential To Permit Strict Scrutiny To Play Its Intended Role In Ensuring That Racial Preferences Do Not Trample The Right To Equal Protection.....5

Conclusion.....7

Table of Authorities

Cases

City of Richmond v. J.A. Croson Co., 488 U.S. 469 (1989) 7

Fisher v. University of Texas at Austin, 133 S. Ct. 2411 (2013) 2

Grutter v. Bollinger, 539 U.S. 306 (2003) 6

Schuette v. BAMN, 134 S. Ct. 1623 (2014) 6

Constitutional Provisions

U.S. Const. amend. XIV, § 1 3

Statutes and Other Authorities

28 U.S.C. § 1254(a) 3

Tex. Educ. Code § 51.803 4

Petition for a Writ of Certiorari

Petitioner Abigail Noel Fisher respectfully submits this petition for a writ of certiorari to review the judgment of the United States Court of Appeals for the Fifth Circuit. The Court's prior decision in this case ("Fisher I") reaffirmed that traditional strict scrutiny applies when a university's use of racial preferences in its admissions process is challenged. The Fifth Circuit's initial ruling instead deferred to the University of Texas at Austin ("UT"). The Court vacated that ruling and remanded the case to the Fifth Circuit to determine whether UT had offered sufficient record evidence to satisfy that exacting standard.

A panel of the Fifth Circuit, this time over the vigorous dissent of Judge Garza, again failed to apply traditional strict scrutiny. Essentially ignoring the Court's admonition to hold UT to the demanding burden articulated in its Equal Protection Clause precedent, the Fifth Circuit approved UT's program under what amounts to a rational-basis analysis. The panel deferred to UT's post hoc speculation that racial preferences served a "qualitative" diversity interest that was never studied, evaluated, or articulated when UT added racial preferences to its admissions program. Worse still, the interest is based on demeaning and unfounded stereotypes about less-privileged applicants from minority communities. Without any evidence that such an interest is educationally compelling, that consideration of race is necessary to advance it, that UT's use of race is narrowly tailored to achieve it, or that the end point of such an amorphous and

unbounded pursuit could ever be subject to judicial review, the Fifth Circuit held that UT's use of racial preferences somehow survived the demanding scrutiny that Fisher I mandates.

If not reviewed, the Fifth Circuit's decision will signal to universities and courts throughout the nation that strict scrutiny is a pro forma exercise and that Fisher I is a green light for racial preferences in admissions decisions. The Court should grant the petition, strike down UT's unjustified use of race, and once again make clear that the Equal Protection Clause does not permit the use of racial preferences in admissions decisions where, as here, they are neither narrowly tailored nor necessary to meet a compelling, otherwise unsatisfied, educational interest.

Opinions Below

The opinion of the United States Court of Appeals for the Fifth Circuit is reported at 758 F.3d 633 and is reproduced in the Appendix ("App.") at 1a-90a. The Fifth Circuit's order denying rehearing en banc is reported at 771 F.3d 274 and is reproduced at App. 94a-98a. The Fifth Circuit's earlier opinion is reported at 631 F.3d 213 and is reproduced at App. 147a-260a. The Fifth Circuit's earlier order denying rehearing en banc and the opinion dissenting from the denial of rehearing en banc are reported at 644 F.3d 301 and are reproduced at App. 318a-330a. This Court's opinion vacating the Fifth Circuit's earlier opinion is reported at 133 S. Ct. 2411 and is reproduced at App. 99a-146a. The opinion of the United States District Court for the Western District

of Texas is reported at 645 F. Supp. 2d 587 and is reproduced at App. 261a-317a.

Jurisdiction

The United States Court of Appeals for the Fifth Circuit rendered its decision on July 15, 2014. App. 91a. A timely petition for rehearing en banc was denied on November 12, 2014. App. 94a. This Court has jurisdiction under 28 U.S.C. § 1254(a).

Constitutional Provision Involved

The Fourteenth Amendment to the United States Constitution provides in relevant part:

> No State shall ... deny to any person within its jurisdiction the equal protection of the laws.

U.S. Const. amend. XIV, § 1.

Statement of the Case

A. UT's Use Of Race In Admissions Decisions

The Court previously described the evolution of UT's admissions program from one that considered race as an independent factor to one that generated substantial minority admissions through race-neutral measures to the system challenged in this case where race is again explicitly and pervasively considered in admissions and placement decisions. App. 100a-104a.

Under the first system, which operated prior to 1997, admission to UT turned on "two factors: a numerical score reflecting an applicant's test scores and academic performance in high school (Academic Index or AI), and the applicant's race." App. 100-101a. In 1997, UT adopted the second system in response to a Fifth Circuit decision invalidating UT's use of racial preferences under the Equal Protection Clause. App. 101a. Admission to UT under the new race-neutral system still turned on two factors, but a Personal Achievement Index (or "PAI") replaced racial preferences. *Id.* The PAI measured a "student's leadership and work experience, awards, extracurricular activities, community service, and other special circumstances," *id.*, including some that "disproportionately affect minority candidates, [such as] the socio-economic status of the student's family, language other than English spoken at home, and whether the student lives in a single-parent household," App. 267a. UT coupled its AI/PAI system with expanded minority outreach programs. App. 101a. These race-neutral efforts resulted in a 1997 entering class that was 15.3% African-American and Hispanic. App. 267a-268a.

A year later, the Texas Legislature supplemented the AI/PAI system with the Top 10% Law, which grants automatic admission to in-state students in the top ten percent of their high school class. App. 101a-102a; *see also* H.B. 588, Tex. Educ. Code § 51.803 (1997). The AI/PAI calculations retained a vital role in UT's process, however, because they determined admission for students that were not automatically admitted under the Top 10% Law and determined placement in schools and

majors for all applicants, including those admitted pursuant to the Top 10% Law. App. 102a.

[*Excerpt: pages 5 through 30 of the filed petition are omitted: the rest of the Statement of the Case, Parts I and II of the Reasons for Granting the Petition, and the opening of Part III.*]

Reasons for Granting the Petition

III. Review Is Essential To Permit Strict Scrutiny To Play Its Intended Role In Ensuring That Racial Preferences Do Not Trample The Right To Equal Protection

The inference universities will draw from the Fifth Circuit's decision is inescapable. This Court's promise of non-deferential strict scrutiny in Fisher I will be viewed as purely rhetorical. By invoking a "qualitative" diversity rationale, any university could evade strict-scrutiny review regardless of the level and educational contribution of minorities admitted through race-neutral means. By avoiding express quotas or defined point awards and using race in a multi-factor admissions calculus, a university could claim to satisfy narrow tailoring. The university then might assume that using race to produce an overall increase in minority admissions, however tiny, will somehow advance its qualitative goal. In sum, leaving the Fifth Circuit's decision unreviewed will render strict scrutiny a pro forma exercise. Qualitative diversity can mean whatever a university wants it to mean and can be unsatisfied for however long a university wants it to be

unsatisfied. It is a recipe for endless racial preferences.

The proliferation of the "qualitative" diversity interest advanced by universal racial preferences thus will only heighten the concern that "each applicant" is not being "evaluated as an individual and not in a way that makes an applicant's race or ethnicity the defining feature of his or her application." App. 107a (citation and quotations omitted). UT's stated use of racial preferences in order to admit the hypothetical "African American or Hispanic child of successful professionals in Dallas" in place of Ms. Fisher, Resp. Br. 34, demonstrates that race, and race alone, is determinative when "qualitative" diversity is the goal. If that hypothetical student and Abigail Fisher come from similar family backgrounds, share the same socio-economic status, and are comparably educated through high school, they should compete equally for admission and race should be no factor. Preferring one to the other, as UT does, therefore cannot be about enrolling students from "the greatest possible variety of backgrounds." *Grutter*, 539 U.S. at 330. So although UT may claim that it is genuinely interested in "qualitative" diversity, the answer to Justice Kennedy's question at oral argument in Fisher I: "So what you're saying is that what counts is race above all?," Oral Arg. Tr. 45:3-4, is of course "yes."

In *Schuette*, 134 S. Ct. at 1631, the Court sought to encourage a "national dialogue regarding the wisdom and practicality of race-conscious admissions policies in higher education." That important conversation can occur only if universities believe that use of racial preferences will be subject to strict scrutiny. Experience sadly teaches that only

"[c]onstant and rigorous judicial review" will "force educational institutions to seriously explore race-neutral alternatives [that are] ... more effective in bringing about the harmony and mutual respect among all citizens that our constitutional tradition has always sought." *Grutter*, 539 U.S. at 393-95 (Kennedy, J., dissenting). Universities will view a decision leaving the Fifth Circuit's judgment undisturbed as "a green light" to use racial preferences unencumbered by meaningful judicial oversight. App. 321a (Jones, J., dissenting from the denial of rehearing en banc). And they will have absolutely no "incentive to make the existing minority admissions schemes transparent and protective of individual review." *Grutter*, 539 U.S. at 394 (Kennedy, J., dissenting).

By granting certiorari in this case and reinforcing the limiting constitutional boundaries of strict scrutiny, the Court will foster that dialogue and put an end to the masking of general social justice concerns as compelling educational interests. "Prospective students, the courts, and the public" must be able to "demand that [universities] prove their process is fair and constitutional in every phase of implementation." *Grutter*, 539 U.S. at 394 (Kennedy, J., dissenting). Unless the Court is able to enforce this commitment, "[s]tructural protections may be necessities if moral imperatives are to be obeyed." *Croson*, 458 U.S. at 518 (Kennedy, J., concurring in part and concurring in the judgment).

Conclusion

The Court should grant the petition.

Respectfully submitted,

WILLIAM S. CONSOVOY
THOMAS R. MCCARTHY
J. MICHAEL CONNOLLY
CONSOVOY MCCARTHY PLLC
3033 Wilson Boulevard
Suite 700
Arlington, VA 22201

PAUL M. TERRILL
THE TERRILL FIRM, P.C.
810 W. 10th Street
Austin, TX 78701

BERT W. REIN
Counsel of Record
CLAIRE J. EVANS
BRENDAN J. MORRISSEY
WILEY REIN LLP
1776 K STREET NW
WASHINGTON, DC 20006
719-7000
brein@wileyrein.com

Attorneys for Petitioner
Date: February 10, 2015

CERTIFICATE OF COMPLIANCE

I certify that this petition complies with the word limitation of Supreme Court Rule 33.1(g)(i), 9,000 words, and contains **1,616** words, counted as Rule 33.1(d) directs: the question presented, the list of parties and corporate disclosure statement, the table of contents, the table of cited authorities, the counsel listing and any appendix are excluded.

Bert W. Rein
Counsel of Record
Date: February 10, 2015